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Ruling brings more concerns on Trump's use of Guard

His actions found illegal but cities including Boston brace

By Shelley Murphy and Tonya Alanez
GLOBE STAFF

They have taken to the streets of Los Angeles and Washington, D.C., armed with rifles, part of the Trump administration's promise to use military might to crack down on crime and help enforce immigration law.

But as the administration threatens to also deploy National Guard soldiers to Chicago, Baltimore, and New Orleans — and possibly even Boston — a recent federal court ruling has bolstered concerns and fears that the president is abusing his authority by using the military to take on the role of civilian law enforcement.

“Our nation has always had a tradition of entrusting law enforcement to civilians,” said William C. Banks, a professor emeritus of law at Syracuse University, who traced the tradition to the Revolutionary War, when people rebelled against British militia ransacking their homes, seizing property, and administering beatings. “We the people don’t want the military on our streets. We don’t want the military enforcing our civilian laws.”

Banks said the law is “pretty clear” that Trump doesn’t have the authority to send National Guard troops to states “without invitation” from their governors, except in limited circumstances.

That point was underscored by a federal judge’s decision in California on Tuesday that found the president’s ongoing use of military troops in Los Angeles County to be unconstitutional. **NATIONAL GUARD, Page A5**

Decision has scientists optimistic about funding

By Jonathan Saltzman, Kay Lazar, and Aidan Ryan
GLOBE STAFF

Harvard University scientists on Thursday applauded a federal judge’s ruling that the Trump administration unlawfully canceled nearly \$3 billion in grants to the school, calling it a victory for the First Amendment and due process rights.

Scientists, graduate students, and others at Harvard said the decision should embolden the university to break with other Ivy League schools and refuse to negotiate a settlement with the federal government over allegations that the school tolerated antisemitism on campus.

“There’s nothing to negotiate,” said George Church, a renowned geneticist, molecular engineer, and serial entrepreneur whose laboratory had received a grant of about \$3 million from the Department of Energy that was frozen. “The lower court has weighed in that [the funding freeze is] not legal.”

The Trump administration vowed to appeal the Wednesday ruling by US District Court Judge Allison D. Burroughs, who concluded that the government crackdown on alleged antisemitism during the 1960s and 1970s was unconstitutional. **HARVARD, Page A7**

INSIDE
THE WAR ON
HARVARD



ANDREW HARNIK/GETTY IMAGES

Health Secretary Robert F. Kennedy Jr. was combative at Thursday’s hearing, accusing lawmakers of “making things up.”

RFK Jr. takes heat, gives it back

Senators pound secretary over vaccine policy while he accuses them of corruption

By Tal Kopan
GLOBE STAFF

WASHINGTON — In an unusually combative hearing, Health Secretary Robert F. Kennedy Jr. on Thursday repeatedly responded to criticism and scrutiny of his leadership from senators by accusing them of lying and corruption.

The terse exchanges were not limited to Democrats, who have been opposed to Kennedy since his nomination and on Thursday

tried unsuccessfully to force Republicans to have him testify under oath at the outset of the hearing of the Senate Finance Committee.

Several Republicans, including those who are also physicians, questioned Kennedy’s actions that have reduced access to vaccines and cast doubt on the safety of established inoculations.

Many senators indicated their inquiries wouldn’t stop after Thursday, demanding

Kennedy respond to questions later. But the hearing also made clear that despite their frustration that Kennedy may have misled them or gone back on promises he made during his confirmation process, as long as President Trump is satisfied with Kennedy, they are left with little recourse other than such hearings.

And despite Democrats expressing hope Kennedy’s answers, or lack thereof, would

KENNEDY, Page A6



‘The secretary of Health and Human Services doesn’t know how many Americans died from COVID, doesn’t know if the vaccine helped prevent any deaths. . . . How can you be that ignorant?’

SEN. MARK WARNER (D-VA.)



‘I’ve been hearing from many of my medical colleagues . . . there are real concerns that safe, proven vaccines like measles, like hepatitis B, and others, could be in jeopardy, and that would put Americans at risk.’

SEN. JOHN BARRASSO (R-WYO.)



‘You’re just going to deny that when people can’t get access, that you’re not taking it away. Then let me ask you, is that the same game you’re going to play with measles, mumps, rubella?’

SEN. ELIZABETH WARREN (D-MA.)

Mass. will require insurers to cover COVID shots

By Jason Laughlin
GLOBE STAFF
and Katarina Schmeiszer
GLOBE CORRESPONDENT

Massachusetts became the first state in the country Thursday to require insurers to cover the cost of COVID shots and other inoculations recommended by state health officials, in another move to counter the Trump administration’s efforts to undo the long national consensus on vaccines.

The rift was prompted by new federal lim-

itations on who should receive COVID vaccines under Health Secretary Robert F. Kennedy Jr. that have created confusion among consumers, pharmacies, and physicians and made it difficult for even those with demonstrated need to get booster shots.

“In Massachusetts, we will not let Donald Trump or Robert Kennedy get in the way of patients and the care and the treatments and the medication that they want and need,” Governor Maura Healey said Thursday. “No one in the great state of Massachusetts is go-

ing to be denied because of cost.”

In late August, the Food and Drug Administration changed its guidance on COVID shots to limit them to people age 65 and older, or to those with a medical condition that puts them at serious risk if they contract the disease. That could prevent millions of healthy people under age 65 from getting a shot without intervention from a doctor.

But delays in the annual recommendations from another health agency under Kennedy’s leadership have also been a factor. **VACCINES, Page A6**

For cat lovers, a crowded field of dreams



SUZANNE KREITER/GLOBE STAFF

The installation on the Somerville Community Path was taking off in July, and it has only grown since then.

90 (!) campaign signs now in place as race for bike path mayor heats up

By Spencer Buell
GLOBE STAFF

SOMERVILLE — Well, this has gotten out of hand. Er, paw. The race for the fictional role of “bike path mayor” began earlier this summer as a joke between two friends, who each put up a handmade campaign sign promoting their cat as the rightful leader of the Somerville Community Path.

A few others took the concept and ran with it, adding their own signs nearby. Then there were more. And more, and more, stretching farther down the bike and pedestrian path near Davis Square.

As of this week there were nearly 90 lawn signs there, dozens more than in July. As the semi-official end of the “campaign” approached, the real race seemed to be just how big this thing could get.

“We love that the community is having fun with it,” said Mallory Bissett, owner and “campaign manager” of a black-and-white outdoor cat named Berry. Bissett teamed up with friend and neighbor Janet McNamara, who owns an orange cat named

CATS, Page A7

The Justice Department sued Boston over its “sanctuary city” policies, which limit local police from complying with federal immigration agents. **B1.**

Josh Kraft is shaking up his campaign staff and using millions of dollars of his own money on the eve of Boston’s preliminary election. **B1.**

The state Cannabis Control Commission reached a settlement with a former top official it fired in January, agreeing to pay more than \$300,000. **B1.**

A mediation session failed to resolve the rift between Arthur T. Demoulas and the Market Basket board. **B5.**

“The Paper,” a spinoff of “The Office,” shifts the scene to a struggling newsroom. Does it have the same magic? Critic Chris Vognar’s take, **G1.**



Fall out

Friday: A shower, much warmer. High 81-86. Low 67-72.

Saturday: Thunderstorms. High 83-88. Low 63-68.

High tide: 10:09 a.m., 10:18 p.m.

Sunrise: 6:14 Sunset: 7:11

Weather and Comics, G6-7.

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